

M/s Meher Chandra Sewal Das Rice Mill v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 September 2018 · Writ-C No. 28814 of 2018 · Writ-C No. 28814 of 2018 · **Time-bound speaking final assessment directed; coercive action stayed.**

HEADNOTE

Where a prior writ had already sent an unauthorised-use dispute to a reasoned final assessment (with a later appeal under s.127 read with cl.6.8(d)) and the consumer had deposited the directed token amount, but no final order had been passed, a later challenge to a subsequent notice was disposed of by directing the consumer to appear before the assessing officer with objections and evidence, requiring a speaking final order within 45 days, and staying coercive action in the meantime. The notice was not quashed and the merits of unauthorised use were not decided.

FACTUAL SUMMARY

The rice mill had earlier obtained, in Writ-C No. 56701 of 2016, a direction to deposit ₹2 lakh, have supply restored, and have the authority decide on reasoned hearing whether unauthorised use was made out and, if so, pass a final assessment. It deposited the amount. No final order followed. It then challenged a 30 May 2018 notice and sought a mandamus to decide three pending representations from 2016–2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

pending unauthorised-use final assessment — time-bound speaking order

HOLDING

Where a prior writ had directed a reasoned decision on unauthorised use of electricity and a final assessment if established, and the consumer had deposited the token amount, but no final order had been passed, the assessing officer shall, after the consumer appears with objections and evidence, pass a speaking final order within 45 days; coercive action is stayed for that period or until disposal of the objections, whichever is earlier. The subsequent notice is not quashed on merits. ¶ 1

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion Where a prior writ had already sent an unauthorised-use dispute to a reasoned final assessment (with a later appeal under s.127 read with cl.6.8(d)) and the consumer had deposited the directed token amount, but no final order had been passed ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal Where a prior writ had already sent an unauthorised-use dispute to a reasoned final assessment (with a later appeal under s.127 read with cl.6.8(d)) and the consumer had deposited the directed token amount, but no final order had been passed ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER UNAUTHORISED USE WAS ESTABLISHED, THE QUANTUM OF ANY FINAL ASSESSMENT, AND THE VALIDITY OF THE 30 MAY 2018 NOTICE

Left to the assessing officer's speaking final order; the notice was not quashed. ¶ 1